

24STCV24068 24STCV24068

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-15
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C09%2F15%2F2026
Source SHA-256: 6b3f11642c0e9a4c776b67214b368534954c7cccca43a13280c3405fb75a4ede

Case Number: 24STCV24068 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ARELY SOTO ARROYO, et al.,

Plaintiffs,

vs.

LA NEIGHBOR IMPROVEMENTS, LLC, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24STCV24068

[TENTATIVE] ORDER GRANTING MOTION TO BE RELIEVED
AS COUNSEL

Dept. 506

8:30 a.m.

September 15, 2026

Eric

E. Castelblanco, counsel of record for Plaintiff Orlando Sanchez Najera, seeks to be relieved as counsel. Counsel's declaration states that the client died on January 19, 2026, and no successor in interest has been identified. No party opposed the motion, which was mailed to the client's last known address and mailed to all known next of kin.

Absent

a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.) Counsel's motion substantially complies with California Rules of Court, rule 3.1362.

However,

the Form MC-053 Proposed Order does not include the client's last known address and telephone number, which is required.

Subject

to the provision of the client's contact information at or before the hearing, the unopposed motion to be relieved is GRANTED and effective upon filing a proof of service showing service of the signed Form MC-053 order and this order on Orlando Sanchez Najera's last known address, all known next of kin, and all parties who have appeared.

"A

cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest . . . and an action may be commenced by the decedent's personal representatives or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.30.) After the death of a plaintiff, the court, on motion, shall allow a pending action that does not abate to be continued by the decedent's personal representative or successor-in-interest. (Code Civ. Proc., § 377.31.)

An

Order to Show Cause Re: Dismissal of Orlando Sanchez Najera or Continuation by Successor-in-Interest is scheduled for November 30, 2026 at 9:00 a.m. in Department 506 at Stanley Mosk Courthouse, with the Final Status Conference.

If

any successor in interest is identified and intends to continue this action on behalf of Orlando Sanchez Najera, they must apply to do so by that date. If not, the Court will dismiss Orlando Sanchez Najera's claims without prejudice.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court